

Court No. - 32

Case :- WRIT - C No. - 32541 of 2023

Petitioner :- Pushpanji Constructions (Private) Limited And 2 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai, Kamlesh Kumar Dwivedi

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Salil Kumar Rai, J.

Hon'ble Surendra Singh-I, J.

Sri Paranas Nath Rai, Advocate representing the Dakshinanchal Vidyut Vitran Nigam Limited and its officers prays for and is granted one week's time to obtain instructions in the matter.

Put up again as fresh on **3rd October, 2023** before the appropriate Court.

The case shall not be treated as tied up or part heard with this Court.

Whenever the case is listed next, the name of Sri Paranas Nath Rai, Advocate shall be shown in the cause list as the counsel for the respondent.

Order Date :- 22.9.2023

Satyam

Court No. - 40

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Petitioner :- Pushpanji Constructions (Private) Limited And 2 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai, Kamlesh Kumar Dwivedi

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Paras Nath Rai

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. In response to the order of this Court dated 22.09.2023, Shri P.N. Rai, learned counsel appearing for the respondents has placed the detailed instructions dated 02.10.2023, which is taken on record.

2. Heard Shri B.C. Rai, learned counsel for the petitioners; Shri Paras Nath Rai, learned counsel appearing for the respondents and learned Additional Chief Standing Counsel for the State-respondent.

3. The present writ petition has been preferred seeking the following reliefs :-

"(i) to issue a writ, order or direction in the nature of Mandamus directing the Dakshinanchal Vidyut Vitran Nigam Limited (respondent no. 2 herein) to produce the breakup of power load calculation including formula used in arriving at the estimated power load and upon production thereof estimated power load may be re-calculated as per provisions of Clause 4.9 read with Annexure 4.6 of the Electricity Supply Code, 2005 as expeditiously as possible, within stipulated time.

(ii) issue a writ, order or direction in the nature of mandamus directing the Dakshinanchal Vidyut Vitran Nigam Limited (respondent no. 2 herein) to sanction estimated power load in phase-wise as per completion of the project."

4. Learned counsel for the petitioners has confined his prayer for a direction to the respondents to take a final decision qua the sanction estimated power load in phase-wise completion of the project. Sri P.N.Rai, learned counsel for the contesting-respondent has no objection to the same.

5. Considering the facts and circumstances of the case, we deem it

appropriate that respondent no. 3 may decide the claim of the petitioner expeditiously in accordance with law. In case, there is any shortcoming in the application moved by the petitioners before finalization of the said proceeding in question, notice may be given to the petitioners so that they may file their objection, if any and thereafter, the proceeding is to be finalised expeditiously strictly in accordance with law.

6. With the aforesaid direction, the writ petition stands **disposed of**.

Order Date :- 3.10.2023/ Rama Kant